

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
MARIE THOMAS,

Plaintiff,

-against-

POLICE OFFICER ROMANDO JULIEN, Shield No.
08171, POLICE OFFICER MARK XYLAS, Tax No.
948160, and SERGEANT EREK POWERS, Tax No.
944907,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings as the
place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 27, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER ROMANDO JULIEN, Shield No. 08171, 81st Precinct, 30 Ralph Avenue, Brooklyn, New York 11221
POLICE OFFICER MARK XYLAS, Tax No. 948160, 81st Precinct, 30 Ralph Avenue, Brooklyn, New York 11221
SERGEANT EREK POWERS, Tax No. 944907, 81st Precinct, 30 Ralph Avenue, Brooklyn, New York 11221

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, MARIE THOMAS, by her attorneys, Jacobs & Hazan, LLP, as and for her Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. On September 27, 2014, at approximately 3:00 p.m., plaintiff, Marie Thomas, was subjected to an unlawful stop, questions, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers while in the vicinity of Patchen Avenue and Greene Avenue, Brooklyn, New York. Thereafter, plaintiff was maliciously prosecuted and denied the right to a fair trial by the defendant police officers. Plaintiff was deprived of her constitutional rights when the individual defendants falsely arrested, imprisoned, maliciously prosecuted, and denied her the right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff MARIE THOMAS is a resident of the State of New York.

3. POLICE OFFICER ROMANDO JULIEN, Shield No. 08171, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER ROMANDO JULIEN, Shield No. 08171, is and was at all times relevant herein, assigned to the 81st Precinct.

5. POLICE OFFICER ROMANDO JULIEN, Shield No. 08171, is being sued in his individual and official capacities.

6. POLICE OFFICER MARK XYLAS, Tax No. 948160, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER MARK XYLAS, Tax No. 948160, is and was at all times relevant herein, assigned to the 81st Precinct.

8. POLICE OFFICER MARK XYLAS, Tax No. 948160, is being sued in her individual and official capacities.

9. SERGEANT EREK POWERS, Tax No. 944907, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT EREK POWERS, Tax No. 944907, is and was at all times relevant herein, assigned to the 81st Precinct.

11. SERGEANT EREK POWERS, Tax No. 944907, is being sued in her individual and official capacities.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. By way of background, on September 27, 2014, at approximately 2:30 p.m., plaintiff's daughter was involved in a physical altercation with several other girls in the vicinity of 1291 Broadway, Brooklyn, New York.

18. Notably, plaintiff was not in the vicinity of 1291 Broadway, Brooklyn, New York at the time of the physical altercation, nor was plaintiff involved in the physical altercation in anyway.

19. Upon information and belief, someone called 911 and the police responded to the scene of the altercation, and several female perpetrators were arrested in the vicinity of 1291 Broadway, Brooklyn, New York.

20. Upon arrival at the scene, the defendant police officers viewed the surveillance video of the physical altercation, which captured the entire incident and captured the identities of the participants in the incident.

21. Notably, the surveillance video that was viewed by the defendant police officers clearly indicated that plaintiff was not involved, nor present during the fight, nor participated in the physical altercation in any way.

22. After the physical altercation occurred, plaintiff's daughter contacted plaintiff and told plaintiff what had happened, and asked plaintiff to pick her up.

23. Plaintiff picked up her daughter and intended on driving her daughter to the 81st precinct so that her daughter could file a complaint against the girls that had assaulted her.

24. While driving towards the 81st precinct, plaintiff's vehicle was pulled over by the defendant police officers.

25. The defendant police officers ordered that plaintiff and her daughter exit the vehicle.

26. Plaintiff complied with the defendant police officers' orders to exit the vehicle and explained to the defendant police officers that her daughter was just in a physical altercation and she was on her way to the precinct to file a complaint against the girls that assaulted her daughter.

27. Notably, at no point in time had plaintiff committed any crime, nor did the defendant police officers have reason to believe plaintiff committed any crime.

28. In fact, the defendant police officers had observed the surveillance video of the altercation, which clearly showed that the plaintiff was not present during the altercation and had not participated in the altercation in any way and exonerated plaintiff.

29. After viewing the surveillance video, which showed plaintiff had not committed any crime, no reasonable police officer could believe that plaintiff could have committed any crime.

30. The evidence in the possession of the defendant police officers at the time they arrested plaintiff could not have caused a reasonable police officer to believe plaintiff committed a crime.

31. Nevertheless, the defendant police officers handcuffed plaintiff and arrested plaintiff without legal justification or probable cause.

32. Thereafter, plaintiff was transported to the 81st precinct.

33. While at the precinct, plaintiff was fingerprinted, photographed, and placed in a holding cell.

34. While at the precinct, the defendant police officers falsely communicated to the Kings County District Attorney's Office that plaintiff had committed a crime despite clear video evidence indicating the contrary.

35. Moreover, upon information and belief, the defendant police officers intentionally and maliciously withheld exculpatory evidence from the Kings County District Attorney's Office, namely the video footage exonerating plaintiff.

36. Based upon the false, incomplete, and/or misleading information provided to the District Attorney's Office by the defendant police officers, a prosecution against plaintiff was initiated.

37. After several hours at the precinct, plaintiff was eventually transported to Brooklyn Central Booking.

38. While at central booking, plaintiff was forced to endure filthy conditions.

39. On September 28, 2014, after an unlawful detention that lasted approximately 24 hours, plaintiff was arraigned in Brooklyn Criminal Court and was released on her own recognizance.

40. Plaintiff was unlawfully charged with Gang Assault in the Second Degree, among other charges.

41. Thereafter, plaintiff had to appear in Court on several occasions before all charges were dismissed upon motion of the District Attorney's Office on February 4, 2015.

42. As a result of the unlawful arrest, plaintiff was suspended without pay from her job as a Correction Officer at the New York City Department of Correction for approximately 6 months.

43. As a result of being suspended without pay for approximately 6 months, plaintiff lost approximately \$40,000 in wages.

44. Further, since she was suspended without pay, she was unable to pay for her daughter's college tuition, fell behind in her mortgage payments on her home, and lost her health insurance.

45. Some of the defendant police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the false imprisonment, false arrest, malicious prosecution, and denial of a fair trial against plaintiff.

46. The false arrest, false imprisonment, malicious prosecution, and denial of a fair trial against plaintiff by the individually named defendant police officers caused him to sustain severe physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Malicious Prosecution

53. Plaintiff repeats and realleges paragraphs 1 through 52 as if fully set forth herein.

54. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, the laws of the State of New York and New York State common law.

55. Defendants commenced and continued a criminal proceeding against plaintiff.

56. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

57. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

58. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's 5th Amendment Right Denial of Due

Process and Denial of Right to Fair Trial

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 60 with the same force and effect as if fully set forth herein.

62. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

63. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

64. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

65. In withholding/creating false evidence against plaintiff Marie Thomas, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

66. As a result of the foregoing, plaintiff Marie Thomas, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

71. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. Defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

82. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Marie Thomas demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 27, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 27, 2017

_____/s/_____
STUART E. JACOBS